

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 886

Introduced by Andersen, 49; Kauth, 31.

Read first time January 08, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Motor Vehicle Operator's License Act;
- 2 to amend sections 60-474 and 60-488, Reissue Revised Statutes of
- 3 Nebraska; to change provisions relating to operation of motor
- 4 vehicles by certain noncitizens; to redefine a term; and to repeal
- 5 the original sections.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 60-474, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 60-474 (1) Operator's or driver's license means ~~shall mean~~ any
4 license or permit to operate a motor vehicle issued under the laws of
5 this state, including:

6 (a) (1) Any replacement license or instruction permit;

7 (b) Except as provided in subsection (2) of this section, the (2)
8 ~~The~~ privilege of any person to drive a motor vehicle whether such person
9 holds a valid license;

10 (c) Except as provided in subsection (2) of this section, any (3)
11 ~~Any~~ nonresident's operating privilege which shall mean the privilege
12 conferred upon a nonresident by the laws of this state pertaining to the
13 operation of a motor vehicle in this state by such person or the use in
14 this state of a vehicle owned by such person;

15 (d) (4) An employment driving permit issued as provided by sections
16 60-4,129 and 60-4,130; and

17 (e) (5) A medical hardship driving permit issued as provided by
18 sections 60-4,130.01 and 60-4,130.02.

19 (2) Operator's or driver's license does not include any license,
20 permit, or document that is issued to any person who is not a United
21 States citizen and does not have lawful status in the United States.

22 **Sec. 2.** Section 60-488, Reissue Revised Statutes of Nebraska, is
23 amended to read:

24 60-488 (1) A nonresident shall not be prevented from operating a
25 motor vehicle upon the highways of this state during the period within
26 which he or she may lawfully operate such motor vehicle in the state
27 under the general motor vehicle laws of this state, but in no event shall
28 such immunity extend:

29 (a) Beyond beyond a period of thirty days continuous residence in
30 the State of Nebraska; or -

31 (b) To any person who is not a United States citizen and does not

1 have lawful status in the United States.

2 (2) Subsection (1) of this section shall be subject to the following
3 limitations:

4 (a) Such nonresident shall be duly licensed under the motor vehicle
5 laws of the state of his or her residence or have complied with the laws
6 of the state of his or her residence relating to the registration or
7 licensing of motor vehicles and conformed to the laws of such state of
8 residence in relation to the operators of motor vehicles;

9 (b) A nonresident who is serving in this state on active duty as a
10 member of the United States Armed Forces, or the spouse of any such
11 person or a dependent of such member of the armed forces, shall be exempt
12 from the licensing requirements of this state if he or she is duly
13 licensed under the laws of the state of his or her residence;

14 (c) A nonresident who is considered to be a full-time student in any
15 institution of postsecondary education in this state shall be exempt from
16 the licensing requirements of this state if such person is duly licensed
17 under the laws of the state of his or her residence; and

18 (d) A nonresident certified by the Department of Labor as engaged in
19 temporary agricultural employment in Nebraska for a period of not to
20 exceed sixty days may be granted an additional thirty days' immunity if a
21 similar immunity is granted by the state of his or her permanent
22 residence to residents of Nebraska while temporarily employed in
23 agricultural employment in such state.

24 **Sec. 3.** Original sections 60-474 and 60-488, Reissue Revised
25 Statutes of Nebraska, are repealed.